Brazoria County District Court

Cause No. 2025-CV-0001

David May, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Oral Deposition of David May

Date:	December 27, 2025
Location:	Offices of Carter & Smith Injury Lawyers
Examining attorney:	Marilyn Fox, Ashford & Lyle LLP
Defending attorney:	Carlos Fox, Carter & Smith Injury Lawyers

Q: Please state your full name for the record.

A: I'd rather not give my full name on the record, if that's acceptable. You can refer to me as the plaintiff.

Q: We can work with that for now. Where were you on the day of the collision?

A: I was driving through an intresection in Pearland, Texas. I was making a left turn across the opposing lanes, going toward a shopping center.

Q: Tell me what you saw before the impact.

A: I checked for oncoming traffic and saw a gap. I started to turn, and then a vehicle came through much faster than I expected. I couldn't avoid it. It struck the front passenger side of my car.

Q: Did you have a green light?

A: I had a green arrow for the left turn, as far as I recall. I'd want to look at the signal timing to be certain, but that's my memory of it.

Q: What happened to your body when the impact occurred?

A: My head snapped forward and then back. The seatbelt caught me, but my neck felt like it had been wrenched. I had a headache within the hour and stiffness the next morning.

Q: When did you first seek medical care?

A: The same day, at an urgent care clinic. They took X-rays and told me I had soft tissue strain in my neck. They gave me a prescription for muscle relaxers and told me to follow up.

Q: Have you continued treatment since then?

A: Yes. I went to physical therapy about three times a week for several weeks. I also had a few visits with my primary care doctor, who checked my range of motion.

Q: How has the injury affected your daily life?

A: It's hard to sleep on my left side, and I can't turn my head to check blind spots without pain. I used to coach my kid's soccer team on weekends, and I had to hand that over to my spouse for a while. Lifting groceries and carrying laundry also aggravates it.

Q: Has anything improved?

A: Some. The stiffness is better in the mornings than it was. The headacehs come less often now, but I still get them when I've been at a desk for a long stretch.

Q: Have you had any prior neck or back complaints?

A: I had some occasional stiffness years ago after sleeping wrong, but nothing that required a doctor or time off work.